

Calendar Line 4

Case Name: Mathew Reinhardt v. General Motors LLC
Case No 25CV465577

The Court has reviewed the moving papers, opposition, reply, declarations, and billing records submitted. The Court finds that this action involved a routine Song-Beverly repurchase claim that was resolved relatively early in the litigation after approximately 6 months. While the Court does not undermine the effort put forth by Plaintiff, the Court agrees with Defendant that the case did not present novel or particularly complex issues that would justify the application of a multiplier. Plaintiff has not demonstrated circumstances warranting enhancement of the lodestar, and the request for a 1.5 multiplier is therefore DENIED.

With respect to hourly rates, the Court finds that the requested rate of \$500 per hour for the number of years the attorneys have been in practice is consistent with prevailing market rate in Santa Clara County. The Court finds \$150 per hour to be a reasonable rate for paralegal work. These rates reflect the prevailing market rates for comparable services in this community.

The Court finds that the number of hours claimed is excessive for the anticipated additional hours requested for preparation of the reply and attendance at the hearing on this motion. The hours shall be reduced from 10 hours to 3.5 - 4.5 hours (see below.)

The Court requires documentation or explanation of costs for “other” in the amount of \$200 of the requested \$823.44 in costs.

Accordingly, the motion for attorney’s fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court grants the reasonable hourly rates at \$500 per hour for partner level attorney work and \$150 an hour for paralegal work.
2. Plaintiff’s request for a 1.5 multiplier is denied.
3. The requested fees of 10 hours anticipated to prepare for, present, and argue this motion shall be reduced to 4.5 hours. If no one contests this tentative ruling, it shall be further reduced by 1 hour.
4. Plaintiff shall submit documentation supporting the claimed costs with the proposed order.

Plaintiff shall prepare and submit a proposed order consistent with this ruling, including the recalculated fee award and supporting documentation for costs, accompanied by Form EFS-020 within 10 days of this hearing.

Calendar Line 5

Case Name: *Bret Sewell et al v. Andrew Medeiros et al.*

Case No.: 25CV471760

Demurrer to Complaint by defendants TTNC, Inc., Trim Tech Industries, Inc., Andrew J. Medeiros, Ellen M. Medeiros, Matthew Medeiros, Andrew J. Medeiros, as co-trustee of the Medeiros 2007 Living Trust dated 5/17/04, and Ellen Medeiros as co-trustee of MEM Vida Trust dated 9/7/06.

Factual and Procedural Background

This is a fraud and breach of contract action brought by plaintiff Trim Tech Distribution, LLC (“TTD”), Trim Tech Construction, Inc. (“TTC”), Bret Sewell (“Bret”), and Christine Sewell (“Christine”; collectively, “Plaintiffs”) against defendants TTNC, Inc. (“TTNC”), Trim Tech Industries, Inc. (“TTI”), Andrew J. Medeiros (“Andrew”), Ellen M. Medeiros (“Ellen”), Matthew Medeiros (“Matthew”), Andrew J. Medeiros, as co-trustee of the Medeiros 2007 Living Trust dated 5/17/04, and Ellen Medeiros as co-trustee of MEM Vida Trust dated 9/7/06 (collectively, “Defendants”).¹

Bret and Christine are the owners of TTD and TTC, which were formed for the purpose of acquiring the business sold by Defendants, TTNC and TTI (collectively, the “Trim Tech Business”). (Complaint, ¶¶ 3, 15.)

Andrew was a co-founder of the Trim Tech Business, owned 51% of TTI, and led all Trim Tech Business construction operations and product sales. (Complaint, ¶ 6.) Andrew is also co-trustee of the Medeiros 2007 Living Trust Dated 5/17/04 (the “Medeiros Trust”), a revocable living trust settled by Andrew and a 49% owner of TTNC. (*Id.* at ¶ 9.)

Ellen was a co-founder of the Trim Tech Business, 49% owner of TTI, and the controller who led Trim Tech Business’s finance and administration. (Complaint, ¶ 7.) Ellen is also co-trustee of MEM Vida Trust dated 9/7/06 (the “MEM Vida Trust”), a revocable living trust settled by Ellen and a 51% owner of TTNC. (*Id.* at ¶ 10.)

Matthew led the marketing and selling of the Trim Tech Business and was the primary contact for Defendants’ selling agent that advised Defendants on the sale. (Complaint, ¶ 8.) The Complaint alleges that TTNC and TTI are the alter egos of Andrew, Ellen, Matt, the Medeiros Trust, the MEM Vida Trust (collectively, “Individual Defendants”). (*Id.* at ¶ 13.)

On December 20, 2022, TTD and TTC entered into a written Asset Purchase Agreement (the “APA”) for the purchase of Trim Tech Business. (Complaint, ¶ 15.) Plaintiffs purchased the Trim Tech Business for \$11.7 million, and TTD and TTC were required to enter a five-year lease of the building owned by Defendants. (*Id.* at ¶ 16.) The transaction closed on December 22, 2022. (*Id.* at ¶ 15.)

Prior to entering the APA, Andrew, Ellen, and Matthew falsely represented to Plaintiffs—primarily Bret—that the Trim Tech Business was profitable with a strong and experienced team of employees that knew how to run the business and were compensated at market levels. (Complaint, ¶¶ 16, 19-20.) After the close of the APA, many employees complained to Plaintiffs about their pay, Bret had to personally conduct hiring interviews as none of the existing employees had experience recruiting, and Plaintiffs learned that employees

¹ The court refers to the individual plaintiffs and defendants by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)